

[doc. web n. 10140369]
Provision of April 10, 2025
Register of provisions
n. 204 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi – Acting Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, “General Data Protection Regulation” (hereinafter, “Regulation”);

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the “Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC” (hereinafter “Code”);

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019 and in www.gpdp.it, doc. web n. 9107633 (hereinafter “Guarantor Regulation No. 1/2019”);

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, some employees of the Municipality of Ponte nelle Alpi (hereinafter “Municipality”), through their lawyer, complained about the dissemination of their personal data, stating, in particular, that the “individual evaluations of individual employees [...] for the purpose of awarding bonuses for achieving the set objectives, within the performance plan” were published in the Municipality's online notice board.

Subsequently, in addition to the aforementioned complaint, further documentation was sent following the publication on the Municipality's website of the resolution of the Municipal Council of XX, n.XX concerning “APPROVAL OF THE PERFORMANCE REPORT FOR THE YEAR XX,” containing attached lists of employees showing their first and last names along with the score assigned to each individual employee.

2. The investigative activity.

With notes dated XX and XX, the Municipality, in response to the Guarantor's requests for information (notes prot. n.XX of XX and prot. n. XX of XX), stated, in particular, that:

- “starting from XX, due to the changes introduced by Legislative Decree 139/2021, converted into Law No. 205/2021, the text of Article 2 ter reads: 1. the legal basis provided for in Article 6, paragraph 3, letter b), of the regulation is constituted by a law or regulatory provision or by general administrative acts. In fact, on XX, the Municipality of Ponte nelle Alpi adopted a specific regulation for the discipline of the measurement and evaluation system of performance and the incentive system”;

- “regarding the legality of publication on the website in the 'Notice Board' section, the publication is made in compliance with the provisions of the TUEL Legislative Decree 18.8.2000, No. 267, particularly pursuant to Article 124. More specifically, the publication of the resolution includes the personal data of the interested parties (minimized to surname and name). From a regulatory standpoint, this publication is considered legitimate pursuant to Article 2 ter of Legislative Decree 196/2003, which authorizes the dissemination of personal data in the presence of 'a law or regulatory provision' or 'general administrative acts.' In this regard, the Municipality, since XX, has adopted a specific 'Regulation for the discipline of the measurement and evaluation system of performance and the incentive system' expressly provided for by Article 14, paragraph 4, letter d), of Legislative Decree No. 150/2009. From a substantial point of view, the publication in the Notice Board of the act represents the date of initiation of activation, by the employee mentioned in the resolution, of any conciliation procedure, as can be inferred from the wording of Article 13”;
- “it is reiterated that the names of the employees are not associated with the indication of incentivizing compensation for individual productivity” but rather to mere performance scores”;
- “Article 10, paragraph 8, letter b) of Legislative Decree 33/2013, which links the performance system to the corruption prevention system, clearly specifies that each administration has the obligation to publish on its institutional website in the section: 'transparent administration' referred to in Article 9: b) the plan and the report referred to in Article 10 of Legislative Decree October 27, 2009, No. 150”;
- “finally, it is recalled that in compliance with what is provided in the second part, paragraphs 2.a and 3.a,

of the decision of the Guarantor no. 243 of 15.05.2014

“Guidelines on the processing of personal data, including those contained in administrative acts and documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” and unlike those published in the “Transparent Administration” section, the documents published in the online Register of Deeds are not indexed. Their publication occurs only for the period provided by the regulations to comply with the principle of temporality and the right to be forgotten. After the publication period has elapsed, the IT system prevents the search for any copy of the published document through access to its databases; furthermore, the IT system signals the temporality of the published information to indexing and search engines, also through suitable formats and technical measures for dialogue with systems external to the entity.

With note of XX, prot. no. XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Municipality, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, for having disseminated online the personal data of the interested parties, through the publication on its institutional website of the resolutions related to the performance plan for the years XX, XX, and XX containing the list of names of employees with the indication of the score assigned to each individual employee, in particular, the resolutions no. XX; no. XX. The publication of the aforementioned acts - containing personal data of the complainants and other interested parties (specifically: first name, last name, and score assigned to each individual employee) - occurred in violation of Articles 5 and 6 of the Regulation and 2-ter of the Code. This publication lasted from the day of the issuance of the resolutions and, regarding the publication in the register of deeds, for the 15 days following the publication. In the Transparent Administration section, however, the names of the interested parties contained in the aforementioned acts were replaced by a progressive numbering.

With the same note, the aforementioned holder was invited to produce defensive writings or documents to the Guarantor or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

With note of XX, prot. no. XX, the Municipality, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that:

- “in relation to the publication in the municipal Register of Deeds of the names (last name and first name, office of belonging) and the results of the performance measurement and evaluation system, the purpose, as per the municipal Regulation, is to allow the interested parties to object regarding the degree of achievement of performance objectives (requesting the opening of the conciliation

procedure). The publication of performance reports - containing the first name, last name, and score assigned to each individual employee - lasted exclusively for the 15 days provided for by Article 124 of Legislative Decree No. 267/2000”;

- “the number of interested parties involved is variable, depending on the staff in service, between 40-44 people”;

- “the alleged violation [...] represents a compliant application of the provisions set forth in Article 4, paragraph 5, of the 'Regulation on the measurement and evaluation of performance and the incentive system' approved by the resolution of the municipal council no. XX of XX, which establishes that 'The Executive Management Plan is published on the institutional website of the Entity in the appropriate section dedicated to “Transparent Administration”. The Performance Report is published in full, along with the attachments, in the municipal Register of Deeds pursuant to Article 124 of Legislative Decree No. 267/2000, also in compliance with the transparency principles set forth in Article 14, paragraph 4, letter c) of Legislative Decree No. 150/2009. The same Performance Report is also published in the “Transparent Administration” section of the institutional website pursuant to Article 10, paragraph 8, letter b) of Legislative Decree No. 33/2013, ensuring that data relating to the distribution of additional salary are published in aggregated form, in order to account for the level of selectivity used in the distribution of bonuses and incentives, as well as the degree of differentiation in the use of rewards for both managers and employees”;

- “the entity relied on the lawfulness of the data processing as the conditions set forth in Article 2-ter of Legislative Decree No. 196/2003, as amended by Article 2 of Legislative Decree No. 101/2018 (legal basis for the processing) were met.”

3. Outcome of the investigative activity. The applicable regulations.

The data protection regulations provide that public entities, within the work context, may process the personal data of the interested parties, including those relating to special categories, if the processing is necessary, in general, for the management of the employment relationship and to comply with specific obligations or tasks provided by law or by Union or Member State law (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of public powers vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter

of the Code). More generally, European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of this regulation with regard to processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures aimed at ensuring lawful and fair processing [...]” (art. 6, para. 2 of the Regulation). In this regard, it is emphasized that the operation of disseminating personal data (such as online publication) by public entities is permitted only when provided for by a legal norm or, in cases provided for by law, by regulation or by a general administrative act (art. 2-ter of the Code). The data controller is in any case required to comply with the principles regarding the protection of personal data (art. 5 of the Regulation).

3.1. Dissemination of personal data.

From the elements acquired and the facts emerged during the investigative activity, it has been established that the Municipality has published on its institutional website the resolutions related to the performance plan for the years XX, XX, and XX containing the list of names of employees with the indication of the score assigned to each individual employee. In particular, resolution n.XX, resolution n.XX, and resolution n.XX containing the personal data of the complainants and other interested parties (about 40 employees) have been published.

Preliminarily, regarding the specific circumstance that the lawfulness of the aforementioned processing derives from what is provided for by the “Regulation on the discipline of the measurement and evaluation system of performance and the incentive system” adopted by resolution of the Municipal Council n. XX of XX - taking into account the amendment of art. 2-ter of the Code which establishes that “the legal basis provided for by article 6, paragraph 3, letter b), of the regulation is constituted by a legal or regulatory norm or by general administrative acts” - it is represented that, also with regard to

the quality and content of the source, within the framework of the European derivation of data protection legislation, in the perspective of legal certainty, as well as the principle of non-discrimination, differentiated levels of protection of personal data are not permitted - neither on a territorial basis nor at the level of individual administrations - especially when, as in the case at hand, the matter has already been subject to balancing and regulation by the legislator with uniform provisions at the national level. This also considering that the Regulation provides that the legal basis for processing must be suitable also in light of the “constitutional order” of the Member State (consideration 41 and see also Constitutional Court ruling n. 271/2005 according to which the discipline of personal data protection falls within the exclusive state competence related to the “civil order”), in compliance with the principle of proportionality (art. 6, para. 3, lett. b), of the Regulation). These principles have been clarified on numerous occasions by the Guarantor (see provisions n.235 of April 11, 2024, web doc n. 10019523; n.588 of September 26, 2024, web doc 10076453 and n.125 of April 13, 2023, web doc 9907846). In any case, the Regulation referred to by the Municipality provides for the publication of the Performance Report on the institutional website of the administration solely to ensure its visibility to citizens and other end users, but without providing for the detailed publication of the evaluations of individual employees. Furthermore, it does not appear relevant to have invoked the necessity of publishing the Report in order to allow the evaluated party to activate the conciliation procedure since the full version of the same, remaining on file with the administration, would still be accessible in the ways and limits provided by law by qualified subjects, such as the individual worker who needs to activate the aforementioned procedure.

During the investigation, the Municipality represented that the publication of such acts “is done in compliance with the provisions of TUEL Legislative Decree 18.8.2000, n. 267, in particular pursuant to art. 124. More specifically, in the publication of the resolution, the personal data of the interested parties (minimized to surname and name) are included,” thus relating the scope of the processing in question to the fulfillment of the publication obligations provided for by art. 124 of the Consolidated Law on the organization of local authorities, which regulates publication for 15 days on the Notice Board of the resolutions of the Entity. However, this discipline establishes nothing regarding the publication of the resolutions subject to this investigation.

The Guarantor has clarified on numerous occasions that even the presence of a specific publicity regime concerning certain categories of acts, a circumstance that does not occur in this case, cannot entail any automatism regarding the online dissemination of personal data contained therein nor a derogation from the principles regarding the protection of personal data, as only data necessary, relevant, and not exceeding the specific purposes pursued by the sector norm may be disseminated (see among many, provision of July 4, 2024, n.404, web doc 10050145 and provision n. 398 of September 14, 2023, web doc 9940457).

Regarding the obligations arising from art. 124 of Legislative Decree 267/2000, in fact, the Guarantor has reiterated that all limits also apply to publications on the online Notice Board of acts or resolutions. the principles of personal data protection, taking into account primarily the existence of suitable legal grounds for the online dissemination of the personal data contained therein, even before considering any potential minimization of such data. This is also confirmed by the personal data protection system contained in the Regulation, under which the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that this has been done (Articles 5, paragraph 2; 24 and 25, paragraph 2, Regulation). Therefore, where the online publication of documents involves the processing of personal data and thus their dissemination, the needs for publicity pursued must be appropriately balanced with the rights and fundamental freedoms, as well as the dignity of the data subject, with particular reference to privacy, personal identity, and the right to personal data protection, prioritizing the existence of a suitable legal basis for the dissemination of the data.

Regarding the publication of the aforementioned resolutions in the “Transparent Administration” section of the institutional website, it is specified that the administration must always verify, based on a responsible and careful assessment, which data and information to publish in accordance with the

applicable sector regulations that govern the methods, timing, and forms of publicity. In this regard, it is noted that Legislative Decree No. 33 of March 14, 2013, provides for the mandatory publication by public administrations of the “criteria defined in the measurement and evaluation systems of performance for the assignment of accessory treatment and the data relating to its distribution, in aggregated form” (Article 20, paragraph 2, Legislative Decree No. 33/2013). The purpose of transparency pursued through this provision, in order to highlight the levels of selectivity and reward “in the distribution of bonuses and incentives” to personnel, is effectively realized, by express choice of the legislator, through the publication of the aforementioned values “in aggregated form” and not nominative, as the reference to Article 10, paragraph 8, letter b), of Legislative Decree No. 33/2013, invoked by the Municipality, is not relevant for these reasons.

Therefore, given the lack of a provision for the obligation to publish this type of personal data among the cases specifically listed by the legislator in Chapter II of the aforementioned legislative decree or in any other specific regulation on transparency, the regime of accessibility established by the transparency regulations does not apply to the case at hand, including the specific provision concerning the five-year period of permanence on the site (as per Article 8, paragraph 3, of Legislative Decree No. 33/2013; in this regard, see “Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities” provision of May 15, 2014, No. 243, web document No. 3134436).

For the reasons stated above, the publication by the Municipality on its institutional website of resolutions No. XX, No. XX, and No. XX containing the personal data of the complainants and other interested parties (about 40 employees) has resulted in the dissemination of personal data in the absence of a suitable legal basis, in violation of Articles 5 and 6 of the Regulation, as well as Article 2-ter of the Code.

4. Conclusions.

In light of the assessments mentioned above, it is noted that the statements made by the data controller during the investigation – the truthfulness of which may be subject to accountability under Article 168 of the Code – while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Regulation of the Guarantor No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Municipality is noted for having disseminated online the personal data of the complainants and other interested parties (about 40 employees), through the publication on its institutional website of resolutions No. XX, No. XX, and No. XX, in the absence of a suitable legal basis, in violation of Articles 5 and 6 of the Regulation and Article 2-ter of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct, Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as also referenced by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering that the conduct has exhausted its effects, since the Municipality has removed the aforementioned resolutions containing the personal data of the interested parties from its institutional website, and taking into account that in the Transparent Administration section the names of the interested parties have been replaced with a progressive number, the conditions for adopting further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for

the application of the administrative pecuniary sanction and accessory sanctions (arts. 58, par. 2, lett. i and 83 of the Regulation; art. 166, par. 7, of the Code). The Authority, pursuant to arts. 58, par. 2, lett.

i) and 83 of the Regulation as well as art. 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Authority] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Authority's website pursuant to article 166, par. 7, of the Code” (art. 16, par. 1, of the Regulation of the Authority no. 1/2019).

In this regard, taking into account art. 83, par. 3, of the Regulation, in the specific case, the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation. The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by art. 83, par. 2, of the Regulation.

It is considered that, in this specific case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, “Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR” of May 24, 2023, point 60), taking into account that:

- the dissemination of personal data involved about forty data subjects and the publication of the aforementioned resolutions occurred for a limited period, having been published on the institutional website of the Municipality for a period of 15 days without indexing on general search engines (cf. art. 83, par. 2, lett. a), of the Regulation);
- with specific regard to the subjective profile of the violation, the Municipality acted under the mistaken belief of fulfilling a legal obligation, despite the numerous indications provided by the Authority since 2014 with the aforementioned Guidelines (art. 83, par. 2, lett. b), of the Regulation);
- the publication did not involve personal data belonging to the special categories referred to in art. 9 of the Regulation or data relating to criminal convictions or offenses (cf. art. 83, par. 2, lett. g), of the Regulation).

That said, considering that the data controller is a small Municipality, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

- there are no previous relevant violations committed by the data controller, of the same nature as those established in relation to the complaint facts, or previous measures referred to in art. 58 of the Regulation (art. 83, par. 2, lett. e), of the Regulation);
- the Municipality has offered good cooperation with the Authority during the investigation (cf. art. 83, par. 2, lett. f), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of 4,000 euros (four thousand) for the violation of arts. 5 and 6 of the Regulation, as well as 2-ter of the Code, as an administrative pecuniary sanction deemed, pursuant to art. 83, par. 1, of the Regulation, effective, proportionate, and dissuasive.

In this context, it is also considered that, pursuant to art. 166, par. 7, of the Code and art. 16, par. 1, of the Regulation of the Authority no. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed. This is in consideration of the specific circumstance that information relating to the complainants and other interested parties has been disseminated through the Municipality's website, particularly with reference to the performance evaluations of each individual worker, given the particular sensitivity of sharing such information in a restricted and specific work context.

Finally, it is noted that the conditions referred to in art. 17 of Regulation no. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY

pursuant to arts. 57, par. 1, lett. f) and 83 of the Regulation, finds the unlawfulness of the processing carried out by the Municipality of Ponte nelle Alpi for violation of arts. 5 and 6 of the Regulation, as well

as 2-ter of the Code, in the terms set forth in the reasoning;

ORDERS

the Municipality of Ponte nelle Alpi, represented by the legal representative pro tempore, with registered office in Frazione Cadola, 52A - 32014 Ponte nelle Alpi (BL), Tax Code 00194880258, to pay the sum of 4,000 euros (four thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning;

ENJOINS

the aforementioned Municipality, in the event of failure to resolve the dispute pursuant to art. 166, par. 8, of the Code, to pay the sum of 4,000 euros (four thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to art. 27 of Law no. 689/1981. It is represented that, pursuant to art. 166, par. 8, of the Code, the possibility for the offender to resolve the dispute by paying - always according to the methods indicated in the annex - an amount equal to half of the imposed sanction within the deadline remains reserved.

pursuant to Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below;

ORDERS

a) pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of the injunction order on the Garante's website;

b) pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Garante Regulation No. 1/2019, the publication of this provision on the website of the Authority;

c) pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE ACTING SECRETARY GENERAL

Filippi